

represents that other areas of examination remain independent of the wage loss documents.

SANCTIONS

If a motion to compel deposition is granted, the Court “shall impose a monetary sanction . . . in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (CCP § 2025.450(g)(1).)

Here, the Court finds sanctions unwarranted. As discussed above, Defendant’s meet-and-confer efforts consisted exclusively of written correspondence and did not satisfy the requirements of section 2016.040(a). In addition, the parties’ dispute over whether the June 25 session was “completed,” and whether relieving the reporter without securing a backup constituted a “suspension,” though ultimately unpersuasive, is not frivolous. Thus, Plaintiff’s opposition to the motion appears to have been substantially justified within the meaning of section 2025.450(g)(1).

2.

CASE #	CASE NAME	HEARING NAME
CVRI2404809	OGDEN vs FCA US, LLC.	MOTION TO BE RELIEVED AS COUNSEL FOR RYAN J OGDEN

Tentative Ruling: Appearances required.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2504852	THOMAS vs SHI	JOINDER TO MOTION TO COMPEL ARBITRATION

Tentative Ruling:

Defendant Shi’s Motion for joinder is denied.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2504852	THOMAS vs SHI	MOTION TO COMPEL ARBITRATION

Tentative Ruling:

Defendant Uber’s Motion to Compel Arbitration is denied.

The court should declines to rule on all evidentiary objections as immaterial to the court’s determination on this motion.

Upon the motion of a party to an agreement to arbitrate, the court must grant a petition to compel arbitration unless it finds: no written agreement to arbitrate exists; the right to compel arbitration has been waived; grounds exist for revocation of the agreement; or litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (CCP § 1281.2.) A proceeding to compel arbitration is in essence a suit in equity to compel specific performance of a contract. (*Freeman v. State Farm Mutual Auto Insurance Co.* (1975) 14 Cal.3d 473, 479.) The motion to compel must set forth the provisions of the written agreement and the arbitration clause verbatim, or such provisions must be attached and incorporated by reference. (CRC 3.1330; *see also Condee v. Longwood Mgmt. Corp.* (2001) 88 Cal.App.4th 215, 218-19.)

“In ruling on a petition to compel arbitration, the trial court may consider evidence on factual issues relating to the threshold issue of arbitrability...Parties may submit declarations when factual issues are tendered with a motion to compel arbitration.” (*Engineers & Architects Assn. v. Community Development Dept.* (1994) 30 Cal.App.4th 644, 653.) In the summary proceedings on a motion to compel arbitration, “the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court’s discretion, to reach a final determination.” (*Engalla v. Permanente Medical Group, Inc.* (1997) 15 Cal.4th 951, 972.)

The FAA Applies

Uber contends that the FAA, 9 U.S.C. §§ 1 et. seq., applies. The FAA generally governs arbitration in written contracts involving interstate commerce. (9 U.S.C. § 2.) To assure uniform results as to arbitrability of disputes subject to the FAA, conflicting state law is preempted under the Supremacy Clause. (*Southland v. Corp. v. Keating* (1984) 465 U.S. 1, 12.) The party claiming that the FAA applies has the burden of proving that the underlying transaction involved interstate commerce. (*Woolfs v. Sup. Ct. (Turner)* (2005) 127 Cal.App.4th 197, 211-214.) Furthermore, the FAA applies when an arbitration agreement expressly states that it is governed by the FAA. (*Aviation Data, Inc. v. Am. Express Travel Related Servs. Co., Inc.* (2007) 152 Cal.App.4th 1522, 1534-1535; *Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 355.)

Here, the arbitration agreement states it is governed by the FAA. (Declaration of Jacqueline Pare, Exhibit G, § 2(c).)

Existence of an Arbitration Agreement

The FAA requires the existence of a valid arbitration agreement before arbitration can be compelled. (9 U.S.C. § 2.) Under the FAA, courts apply California contract law to determine whether the parties formed a valid agreement to arbitrate their dispute. (*Avery v. Integrated Healthcare Holdings, Inc.* (2013) 218 Cal.App.4th 50, 59-60.) “Under both federal and California law, arbitration agreements are valid, irrevocable, and enforceable, save upon such grounds as exist at law or in equity for the revocation of any contract.” (*Armendariz v. Foundation Health Psychcare Services* (2000) 24

Cal.4th 83, 98; see 9 U.S.C. § 2 and CCP § 1281.2) Similar to California law, any doubt about the arbitration of a dispute under the FAA is resolved in favor of arbitration. (*AT&T Technologies, Inc. v. Communications Workers of America* (1986) 475 U.S. 643, 650.) Generally, the party seeking arbitration is only required to attach a copy of the arbitration agreement purportedly bearing the opposing party's signature, and does not need to follow the normal rules of authentication. (*Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755.) As explained by one court: "Properly understood, *Condee* holds that a petitioner is not required to authenticate an opposing party's signature on an arbitration agreement as a preliminary matter in moving for arbitration or in the event the authenticity of the signature is not challenged." (*Ruiz v. Moss Bros. Auto Group, Inc.* (2014) 232 Cal.App.4th 836, 846.)

But the issue here is not the authenticity of Plaintiff's signature or the document itself. Instead, the issue is Uber fails to attach a copy of an arbitration agreement that applies to the dispute at issue at all. Importantly, the moving party must prove by a preponderance of evidence the existence of the arbitration agreement and that the dispute is covered by the agreement. (See *Cruise v. Kroger Co.* (2015) 233 Cal.App.4th 390, 396-397; see also *Graphic Arts Internat. Union v. Oakland Nat. Engraving Co.* (1986) 185 Cal.App.3d 775, 780 ["...we conclude that while the trial court must not decide the merits of an alleged controversy when ruling upon a petition to compel arbitration, it must nevertheless determine the threshold question of whether the petition adequately alleges facts demonstrating the existence of an arbitrable controversy."].)

The issue is not one of evidentiary support or authentication of a signature, as examined in *Condee* or *Ruiz*, *supra*, or *Espejo v. Southern California Permanente Medical Group* (2016) 246, Cal.App.4th 1047, cited by Uber in their reply. While Uber's initial burden is low, they must attach a copy of an arbitration agreement that concerns the controversy at issue in the case. It is only once the court determines the agreement to arbitrate exists, should it *then* decide the other objections to its enforceability. (*Condee*, *supra*, v. 88 Cal. App. 4th at 219.) Stated differently, it is the trial court's duty to determine whether there is an arbitrable controversy as a threshold question. (*John Wiley & Sons v. Livingston* (1964) 376 U.S. 543, 546-547.)

Here, the arbitration clause expressly covers any legal dispute arising out of or related to Plaintiff's relationship with Uber, including "incidents or accidents resulting in personal injury to you that you allege occurred in connection *with your use of the Services*." (Declaration of Jacqueline Pare, Exhibit G, § 2(a); emphasis added.) The initial paragraph of the agreement makes it clear that the agreement governs, "...access or use by you....of applications, websites, content, products, and services made available...by [Uber]..." (*Id.* at § 1.)

Uber claims Plaintiff was a passenger in Shi's vehicle, but the complaint alleges: "Defendants, and each of them, so negligently, unlawfully, and dangerously drove, operated, owned, maintained, and entrusted their vehicle so as to cause it to collide with the vehicle in which Plaintiff was a backseat passenger." (Complaint, p. 1.) The complaint alleges Shi was actively using the Uber Driver App. (*Id.*) It does not allege that Plaintiff was a passenger in said vehicle. Uber cites to the complaint in its reply in arguing that the complaint does allege Plaintiff was a passenger in Shi's vehicle, but the

citation again only states that Shi was the only “actively” using the application to pick up and transport “passengers” – not Plaintiff. (See Uber’s Reply, p. 2:17-21.) Uber does not provide any evidence of Plaintiff requesting a ride on the date of the incident or otherwise being a passenger in Shi’s vehicle and Uber otherwise fails to establish the existence of an arbitrable controversy.

The issues of delegation, consent, or unconscionability are not reached because Uber fails to meet its initial burden to establish the existence of an applicable arbitration agreement.

5.

CASE #	CASE NAME	HEARING NAME
UDCO2600405	AMFP VII ESPLANADE LLC vs GOMEZ	MOTION FOR SUMMARY JUDGMENT ON UNLAWFUL DETAINER

Tentative Ruling:

Plaintiff AMFP VII Esplanade LLC’s Motion for Summary Judgment is denied.

Trial is set for 8/28/26; Trial Readiness Conference is set for 8/21/26.

From commencement to conclusion, the party moving for summary judgment bears the burden of persuasion. (*Aguilar v. Atlantic Richfield Company* (2001) 25 Cal.4th 826, 855.) When a plaintiff is the moving party, the plaintiff has the burden to produce admissible evidence on each element of a cause of action entitling him to judgment. (Code Civ. Proc., § 437c(p)(1).) The plaintiff does not have the burden to disprove affirmative defenses. (*Id.*) At that point, the burden shifts to the defendant to show that a triable issue exists. (*Id.*)

“An action for unlawful detainer is a summary proceeding. [Citation] The statutory scheme is intended and designed to provide an expeditious remedy for the recovery of possession of real property. [Citation.] Unlawful detainer actions are, accordingly, of limited scope, generally dealing only with the issue of right to possession and not other claims between the parties, even if related to the property.” (65283 *Two Bunch Palms Building, LLC v. Coastal Harvest II, LLC* (2023) 91 Cal.App.5th 162, 167.) In an unlawful detainer action, the plaintiff has the initial burden of proof as to all essential elements of the prima facie case. Thus, the landlord in an unlawful detainer has the burden of proving, at a minimum, the existence of the landlord-tenant relationship, termination of that relationship, and the tenant’s continued possession of the premises. (*Ahlens v. Barrett* (1906) 4 Cal.App. 158, 160.)

Notice

Unlawful detainer actions are authorized and governed by statute, which is strictly construed. (See Code Civ. Proc. § 1161 *et seq.*; *U.S. Financial, L.P. v. McLitus* (2016) 6 Cal.App.5th Supp. 1, 3.) “The statutory scheme is intended and designed to provide an